CARLOS ELÍAS MAHECHA DÍAZ
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Miami, Florida, November ___, 2026

VIA FEDEX (SIGNATURE REQUIRED) AND USPS CERTIFIED MAIL, RETURN RECEIPT REQUESTED

Bureau of Diplomatic Security
U.S. Department of State
2201 C Street NW
Washington, DC 20520

With copy to: Office of the Assistant Legal Adviser for International Claims and Investment Disputes (L/CID), Office of the Legal Adviser, U.S. Department of State, 2201 C Street NW, Washington, DC 20520.

Re: Administrative claim under the Federal Tort Claims Act of Carlos Elías Mahecha Díaz — malicious prosecution and abuse of process in United States v. Carlos Mahecha, Case No. 1:19-cr-20738 (S.D. Fla.) — sum certain US$2,326,652.15

Dear Sir or Madam:

I, Carlos Elías Mahecha Díaz, acting on my own behalf, present this administrative claim under the Federal Tort Claims Act, 28 U.S.C. §§ 1346(b) and 2671-2680. The enclosed Standard Form 95, signed by me, together with its Addendum, this letter and the exhibits listed below, constitutes written notice of the incident and a claim for money damages in a sum certain under 28 U.S.C. § 2675(a) and 28 C.F.R. § 14.2(a).

1. Why I am presenting this claim

For five years the United States prosecuted me for wire fraud and conspiracy to commit wire fraud. I was extradited from Colombia, held in federal custody in Miami, kept under home detention with an ankle monitor, and subjected to court-ordered restrictions until trial. On November 21, 2024, after a twelve-day trial, the jury found me NOT GUILTY on all ten counts, and on November 22, 2024 the Court entered a Judgment of Acquittal (DE 136).

I contend that the prosecution was initiated and continued without probable cause, on the basis of incomplete and misleading information supplied by the federal agents who investigated the case. The defense's forensic accountant, after reviewing the bank records, found no indicators of the alleged fraud, and the jury acquitted me on every count. The prosecution cost me my liberty, my health and peace of mind, my reputation in the United States, and more than one million dollars in legal fees and defense costs. This claim seeks compensation for those losses.

This claim is presented to the Department of State because the investigation that led to the prosecution was conducted by Special Agent Seth Toensing of the Diplomatic Security Service, an investigative or law enforcement officer of the Department within the meaning of 28 U.S.C. § 2680(h), and by any other Department personnel who took part in it. Following 2 FAM 281.4-3, the claim is submitted to the bureau out of whose activities it arose, with a copy to L/CID.

2. Facts

a) Indictment. On November 5, 2019, a grand jury in the Southern District of Florida returned an indictment charging me with conspiracy to commit wire fraud (18 U.S.C. § 1349) and nine counts of wire fraud (18

U.S.C. § 1343) in connection with Bal Harbour Quarzo, LLC, a Florida real estate company of which I was managing member (Exhibit 1).

b) Extradition. On March 16, 2021, AUSA Sean Paul Cronin and Diplomatic Security Service Special Agent Seth Toensing executed sworn affidavits in support of the request for my extradition from Colombia (Exhibit 2). I was arrested in Colombia and held there until I was surrendered to the United States. My detention in Colombia is stated only as background and is not claimed (28 U.S.C. § 2680(k)).

c) Custody and release conditions. I arrived at the Federal Detention Center in Miami on May 4, 2023, and was held in custody until May 10, 2023. On May 9, 2023 the Court set bond at US$3,000,000 with a 10% deposit, plus a US$500,000 corporate surety bond (DE 15). From May 10 to August 25, 2023, I was under home detention with a GPS ankle monitor. On August 24, 2023 the Court authorized removal of the monitor (DE 32), and I remained subject to the other conditions of pretrial release until my acquittal (Exhibits 3 and 4).

d) Trial and acquittal. Trial began on November 4, 2024. Special Agent Toensing was not called as a witness. The defense presented, among others, forensic accountant Tanya M. Cooper (DE 123). On November 21, 2024, the jury returned a verdict of NOT GUILTY on all ten counts, and on November 22, 2024 the Court entered a Judgment of Acquittal (DE 136). The bond deposit was ordered released (DE 138) (Exhibits 5 and 9).

3. Legal basis

Under 28 U.S.C. § 1346(b)(1), the United States is liable in the same manner as a private person under the law of the place where the act or omission occurred, here Florida. Section 2680(h) waives sovereign immunity for claims of malicious prosecution and abuse of process arising from acts or omissions of investigative or law enforcement officers of the United States. Under Florida law, malicious prosecution requires (1) the commencement or continuation of a criminal proceeding, (2) caused by the defendant, (3) its bona fide termination in the plaintiff's favor, (4) the absence of probable cause, (5) malice, and (6) damages. Alamo Rent-A-Car, Inc. v. Mancusi, 632 So. 2d 1352, 1355 (Fla. 1994). The proceeding ended in my favor by acquittal on the merits on every count. Malice may be inferred from the absence of probable cause. Id.

4. Timeliness and concurrent presentation

A claim for malicious prosecution accrues when the criminal proceeding terminates in the claimant's favor. The proceeding terminated on November 21-22, 2024, and this claim is presented within two years, as required by 28 U.S.C. § 2401(b). An identical claim is being presented concurrently to the U.S. Department of Justice (Civil Division, Torts Branch, Federal Tort Claims Act Staff) (28 C.F.R. § 14.2(b)). I respectfully ask that the agencies confer and designate a single agency to investigate and decide the claim. The amount stated is a single, non-cumulative sum; I do not seek double recovery.

5. Damages: sum certain of US$2,326,652.15

Component	US$
A. Attorneys' fees and defense costs paid (Exhibit 6)	1,171,857.63
A.1 Defense of the criminal case after indictment (Nov. 2019 - Nov. 2024)	974,363.87
A.2 Defense during the grand jury investigation (2017 - 2019)	197,493.76
B. Loss of liberty, emotional distress and injury to reputation	1,154,794.52
TOTAL SUM CERTAIN (SF-95, Boxes 12b and 12d)	**2,326,652.15**

A. Economic damages. Exhibit 6 lists, invoice by invoice, every amount claimed, with the provider, the date of payment, the payor and the payment reference; Exhibits 7 and 8 contain the engagement letters, invoices and proof of payment. Only amounts that were invoiced for the defense of this investigation and

prosecution and actually paid to providers in the United States are claimed. I exclude everything paid in Colombia, the costs of the separate civil litigation brought by the Chapter 7 Trustee, unpaid balances and items without proof of payment. Several payments were made on my behalf, at my request, by family members and family-owned companies; Exhibit 6 identifies each payor, and documents evidencing my obligation to reimburse them will be supplemented.

B. Non-economic damages. This component compensates six days in federal custody (May 4-10, 2023), 107 days of home detention with a GPS ankle monitor (May 10 - August 25, 2023), 454 further days under pretrial release restrictions until the acquittal, and five years under indictment, with the resulting anxiety, humiliation and injury to my reputation and professional standing in the United States. Supporting evidence, including a forensic psychological evaluation, will be supplemented.

No insurance covered any part of these losses, and no claim has been made to any insurer (SF-95, Boxes 15-19).

6. Enclosures and exhibits

SF-95. Standard Form 95 (Rev. 2/2007), signed in ink, with its one-page Addendum (Boxes 8, 10, 11 and 12).

Exhibit 1 — Indictment, United States v. Carlos Mahecha, Case No. 1:19-cr-20738 (S.D. Fla.), November 5, 2019.

Exhibit 2 — Affidavits of AUSA Sean Paul Cronin and DSS Special Agent Seth Toensing in support of extradition, March 16, 2021.

Exhibit 3 — Docket sheet of Case No. 1:19-cr-20738, including the initial appearance of May 5, 2023 (DE 13).

Exhibit 4 — Bond and conditions of release (DE 15, 16, 21 and 22) and Order of August 24, 2023 authorizing removal of the GPS monitor (DE 32).

Exhibit 5 — Jury Verdict (DE 128), Judgment of Acquittal (DE 136) and Order for disbursement of the bond (DE 138).

Exhibit 6 — Itemized schedule of attorneys' fees and defense costs (provider, invoice, payment date, payor, payment reference and amount).

Exhibit 7 — Engagement letters and invoices: 7-A Piñera-Vazquez Law Firm, P.A.; 7-B Salazar Law, LLP (Invoice 6384 and April 2024 fee correspondence); 7-C Cooper Strategic Solutions, LLC; 7-D The FairWay, LLC; 7-E intentionally omitted; 7-F Carlton Fields, P.A. (Matter 13390-36114); 7-G K&L Gates LLP.

Exhibit 8 — Proof of payment (SWIFT messages, wire confirmations, bank statements and counsel's payment confirmations), numbered 8-01 to 8-15 in the order of Exhibit 6.

Exhibit 9 — Forensic accounting report of Tanya M. Cooper, CPA, for the defense (October 31, 2024), and trial minute entries (DE 110-126).

Documents to be supplemented. Under 28 C.F.R. § 14.4, I will supplement the claim with: (a) the forensic psychological evaluation now in progress; (b) declarations of family members; (c) written confirmation from counsel Luis Salazar regarding Invoice 6384; (d) the trust-account ledgers of Piñera-Vazquez Law Firm and Carlton Fields, and the bail bond agent's contract and receipts; (e) copies of three K&L Gates invoices that appear in its statement of account; (f) the documents evidencing my reimbursement obligations to those who paid on my behalf; and (g) relevant trial transcript excerpts.

7. Request

I respectfully request that you acknowledge receipt of this claim, assign it a claim number, and direct all communications to me at the address, telephone number and e-mail stated above.

8. Declaration

I declare under penalty of perjury under the laws of the United States of America that the facts stated in this claim are true and correct to the best of my knowledge and belief, and that the amounts listed in Exhibit 6 were actually paid to the providers identified there for my defense (28 U.S.C. § 1746).

Executed on November ___, 2026, at _____.

Respectfully submitted,

_____

CARLOS ELÍAS MAHECHA DÍAZ
Claimant

Enclosures: SF-95 with Addendum; Exhibits 1 to 9.